

K. Munaswamy, vs K. Munikrishnaiah, on 29 February, 2020

Author: M. Venkata Ramana

Bench: M. Venkata Ramana

ON'BLE SRI JUSTICE M. VENKATA RAMANA

A.S.No.2047 of 1998

JUDGMENT :

This appeal is preferred under Section 96 CPC against the decree and judgment in O.S.No.22 of 1997 (originally instituted in O.S.No.148 of 1991 on the file of the Court of learned Additional Subordinate Judge, Tirupati) on the file of the Court of learned IV Additional District Judge, Tirupati, dated 03.09.1998.

2. The plaintiffs are the appellants. The respondents are the defendants.

3. The relationship among these parties is not in dispute.

4. Sri Muneppa and Smt.Gnanamma are the parents of Sri Chengaiah, Sri Bakkaiah, Sri Munaswamy and Smt.Kondemma. Smt.Audilaksh-mamma, is the wife of Sri Chengaiah. He died about 30 years ago.

Smt.Audilakshmamma also passed away. The first respondent is their son and Smt.Munemma is their daughter. Sri Pellakuru Muniswamy was a resident of Gandlakotturu near Chittoor. He is the husband of Smt.Munemma. They had three sons Sri Venkata Muni, Sri Subrahmanyam and Sri Sivalingam as well as three daughters Smt.Ranemma, Smt.Santhamma and Smt.Jayalakshmi. The third respondent is the son of Sri Subrahmanyam, who is son of S/o.Smt.Munemma and Sri Muniswamy. Sri Bakkaiah died about 35 years ago, issueless. Smt.Govindamma is his wife. Material on record goes to show that Smt.Govindamma was alive during pendency of the suit (the second defendant as D.W.1 deposed this fact).

5. Sri Muniswamy, S/o.Sri Muneppa and Smt. Gnanamma died in or about the year 1973. The second respondent is his wife. Smt.Kannamma, only daughter of Sri Muneppa and Smt.Gnanamma, had three sons and daughter Smt.Govindamma, who, as already stated, is the wife of Sri Bakkaiah.

6. The case of the appellants in the plaint was that the plaint schedule properties belonged to the joint family constituted by Sri Muneppa and his three sons Sri Chengaiah, Sri Bakkaiah and Sri Muniswamy and that the first respondent being the sole legal heir and the male issue in the family, became entitled to all these joint family properties. It was further stated in the plaint that the respondents 1 and 2 joined together to the detriment of the appellants and since, the first respondent began to spend away the properties being addicted to vices, they were constrained to lay the suit for partition. They further claimed that Sri Muniswamy and the second respondent being

elders in the joint family were managing the family properties. They further claimed that in spite of issuing a legal notice on 03.06.1991 calling upon respondents 1 to 3 to divide the properties, there was no response and hence they were constrained to lay the suit.

7. The first respondent remained ex parte in the suit.

8. The second respondent alone contested the suit filing written statement. In the written statement she denied that there was a joint family constituted by Sri Muneppa and his sons and that, it had any properties from ancestral source. She further contended in the written statement that all the plaint schedule properties were her acquisitions and that of her late husband and that her husband and his two brothers entered into a family arrangement on 12.08.1953 under a 'muchalika' making clear that there were no ancestral joint family properties. She further stated in the written statement that during lifetime of her husband, she and he adopted the third respondent, who has been living with them from the time he was two years old and whose marriage was performed with one Smt.Padmavathi. She further stated in the written statement that her husband during his lifetime executed a registered Will on 09.03.1964 in her favour giving away item No.2 of the plaint schedule. She further averred in the written statement that item No.3 of the plaint schedule properties was succeeded to by her from her father Sri Chennaiah and his brother Sambasivaiah since died issueless, which she had sold away about 7 to 8 years prior to institution of the suit, to one Sri Cheku Gopala Chetty. She further stated that items 1 and 4 were purchased by her under registered sale deeds out of her funds. She further averred that she and the family of the appellants have not been on speaking terms and denied that the first respondent was taken in adoption by her and her late husband. She further claimed that the suit could not be maintained for mis-joinder and non- joinder of parties and that the suit was barred by time. She further contended that she executed Wills on 19.09.1977 and on 15.07.1987 giving away her properties to the third respondent out of her freewill and in sound state of mind. She also alleged that she had to contract huge debts for maintaining the family and improving the lands in item No.4 of the plaint schedule. Thus mainly on such grounds, the second respondent resisted the claim of the appellants. Her stand was adopted by the third respondent, at the trial.

9. Basing on the above pleadings, the learned trial Judge settled the following issues for trial:

"1. Whether the plaintiffs are entitled to the division of plaint schedule properties into three equal shares and allotment of two such shares to them having regard to the good and bad qualities?

2. To what relief?

10. At the trial, the appellants 1 and 2 examined themselves as P.W.1 and P.W.2 apart from two more witnesses as P.W.3 and P.W.4 in support of their claim, while relying on Ex.A1 copy of legal notice issued by them.

11. The second respondent examined herself as D.W.1 while relying on Ex.B1 to Ex.B41 to support her claim at the trial.

12. Basing on the material and the evidence let in by the parties, learned trial Judge held that there was no proof of existence of a joint family as claimed by the appellants nor it had any properties as joint family properties. It was further held that the plaint schedule properties belonged to the second respondent, to which the appellants cannot have any claim. Thus, mainly observing, all the issues were held in favour of the respondents and consequently, the suit was dismissed. It is against this decree and judgment, the appellants have preferred this appeal.

13. Heard Sri O.Manohar Reddy, learned counsel for the appellants. None represented the respondents.

14. Now, the following points arise for determination:

Whether there was a Hindu undivided family constituted by Sri Muneppa and his three sons and if it had any properties of ancestral nature?

Whether the plaint schedule properties are self acquired properties of the second respondent and her husband? Whether declining to grant a decree for partition by the trial Court is justified in the circumstances? To what relief?

15. POINT No.1: The appellants specifically pleaded in the plaint that there exists a Hindu undivided family constituted by Sri Kanipakam Muneppa and his three sons, viz., Sri Chengaiah, Sri Bakkaiah, and Sri Munaswamy and that the plaint schedule properties are the properties of this Hindu undivided family. The second respondent disputed this claim of the appellants specifically denying that there was such a Hindu undivided family and that it had any properties of its own or of ancestral nature. Therefore, the burden is on the appellants to prove and establish this fact of existence of a Hindu undivided family and that it owned properties. There is no presumption that the properties held by a member of a Hindu undivided family constituted the joint family properties, with common possession and enjoyment, nor members so related constituted a joint family.

16. As seen from the evidence on record, absolutely no documentary evidence was placed at the trial by the appellants to prove this fact. On the other hand, there are statements elicited in cross-examination of both the appellants, who were examined at the trial as P.W.1 and P.W.2, contra to this claim. The first appellant as P.W.1 clearly admitted that he did not have any documents to show that the plaint schedule properties are ancestral properties belonging to his grand-father and his brothers.

17. The second appellant as P.W.2 also admitted that he did not file any documents to make out the nature of the plaint schedule properties as joint family properties held by his grandfather and his brothers, which is in consonance with the version of the first appellant. Though he stated that the entire properties were acquired only during life time of his grandfather and his brothers, there is no specific proof laid. He further stated that these brothers did not have ancestral property nor any properties were acquired by their father Sri Muneppa.

18. These statements of both the appellants at the trial coupled with the fact that there is no documentary evidence in proof of such fact, are sufficient to reject their claim of constitution of a Hindu undivided (joint) family and that it had certain properties. When such claim is made with reference to the plaint schedule properties, these statements of the appellants, clearly make out that they did not have the character and nature of the properties of this family.

19. It was the specific contention of the second respondent at the trial that her husband and his two brothers, entered into Ex.B7 family arrangement on 12.08.1953 in the presence of village elders. The contents of Ex.B7 are to the effect that these brothers were traders and that they were living separately. It further recorded that from the time of their marriages, they were so living, for about ten years prior to entering Ex.B7. It is also recorded the fact that they were running business separately and individually without any concern for each other. It further recorded the fact that they did not have any ancestral property or any income of such nature. The second respondent specifically pleaded this fact of entering into Ex.B7 agreement by these three brothers in her written statement. She also deposed in respect thereof as D.W.1 and further stated that neither the attestors nor the scribe nor the parties to this document are alive. Since Ex.B7 is a document which is more than 30 years old, presumption under Section 90 of Indian Evidence Act, applies and to hold that these three brothers as deposed by the second respondent did enter into such transaction. It has not been repelled by the appellants in any manner nor cross-examination of the second respondent as D.W.1 on their behalf has elicited any material to discard her version.

20. On the premise of want of evidence of any nature in this respect, learned trial Judge clearly recorded the findings in the judgment under appeal holding that neither there is proof of a Hindu undivided family as alleged by the appellants, nor that it held any properties of such nature. Basing on the material on record, there is no reason to differ with the finding so recorded by the learned trial Judge.

21. The second respondent not only pleaded in her written statement but also deposed explaining the acquisition of the properties by her and her late husband, mentioned in the plaint schedule. Her oral testimony is supported by the registered documents of unimpeachable nature. They have not been effectively contradicted by the appellants.

22. Item - 1 of the plaint schedule is a vacant site. It was acquired under Ex.B1 on 19.12.1942 by the second respondent from Sri K.Narayanawamy Naidu and others. She claimed that it was purchased out of her own funds. She further claimed that item - 4 of the plaint schedule properties, which are agricultural lands were purchased by her under Ex.B3 dated 12.10.1968 and Ex.B4 dated 09.10.1959 out of her own funds.

23. The evidence of the second respondent also makes out that she was the only legal heir to succeed to the estate of her late father Sri Changaiah and his brother Sri Sambasivaiah. According to her, her junior paternal uncle Sri Sambasivaiah had no issues. Her version in the written statement as well as at the trial is proving that she succeeded to item -3 of the plaint schedule from them, which she sold away to Sri Cheku Gopalachetty about eight to ten years prior to institution of the suit. This fact is also admitted by the second appellant as P.W.2 in his deposition.

24. Though the attempt of the appellants at the trial was that the father of the second respondent and his brother were living as pujaris in a village without ostensible means, there is no evidence let-in by them to that effect. The fact of sale of item - 3 since admitted by the appellants themselves, feeds the contention of the second respondent. If this background is taken into consideration, possibility of the second respondent acquiring items 1 and 4 out of her funds, cannot be ruled out.

25. The evidence on record further makes out that her late husband was running a beedi manufacturing business, as was deposed by her. Possibly, reference to business in Ex.B7 can be tagged on to this beedi manufacturing business. It can be taken as the source for acquisition of properties by her and her late husband apart from the funds she had from her parental background.

26. Item No.2 of the plaint schedule properties, according to the second respondent was purchased by her late husband on 29.11.1956 from one Sri Mohd.Yusuf for valuable consideration. Her husband during his lifetime had bequeathed this property to her under Ex.B2 registered Will, dated 09.03.1964. The presumption under Section 90 of Evidence Act, is also applicable to Ex.B2 Will and though neither attestors nor the scribe of this document were examined at the trial. It is further to be noted that the second respondent has been residing in item - 2 of the plaint schedule, which is a house. There is no proof laid by the appellants that the first respondent or themselves, ever lived in this house as members of a joint family along with the second respondent. This fact is also admitted by the second appellant at the trial when he deposed as P.W.2.

27. The version of the appellants in the plaint is that the first respondent was adopted by the second respondent and her husband during his lifetime and that they performed his marriage in the year 1963. The second respondent clearly denied it in her written statement as well as at the trial.

28. Added to it, the evidence of the appellants itself makes out that they have a separate house at Chandragiri, where they were living by the date of institution of the suit and that the first respondent was working as a Forest Guard. It is also in the evidence of the second respondent that the appellants and their father have houses at Chandragiri. Though the first respondent was working as a Forest Guard, the appellants have chosen to describe him as an agriculturist in the plaint. The reason is obvious. If he is described as a Forest Guard, their allegation that the first respondent was addicted to vices like consuming alcohol and that he in collusion with the second respondent meddled with the plaint schedule properties, would fall to ground. Hence, they suppressed this fact, purposely.

29. As rightly observed in the judgment under appeal, the documentary evidence so placed explaining acquisition of plaint schedule properties by the second respondent belied the theory set up by the appellants that they have been acquisitions of the alleged joint Hindu family.

30. Added to it, the evidence of the second respondent also makes out that she improved the landed property providing sufficient irrigation facility including borrowing loans from land mortgaging bank. Ex.B31 to Ex.B41 support her version.

31. When all these circumstances are taken into consideration cumulatively, the inference to draw is that the appellants miserably failed to make out their claim that the plaint schedule properties belonged to the alleged Hindu undivided family of Sri Muneppa and his sons. Nor there existed such alleged joint family constituted by them. Reasons assigned by the learned trial Judge have to be confirmed in this respect.

32. Thus, this point is answered.

33. POINT No.2: Reasons are assigned while discussing point No.1, discussing the manner of acquisition of the plaint schedule properties either by the second respondent or her husband during his lifetime. They clearly make out that these properties remain their self-acquisitions. No evidence was placed at the trial by the appellants contra to it and on the other hand, their testimony stands to support the version of the second respondent at the trial to hold that they did not form the properties of the alleged Hindu joint family.

34. Thus, this point is answered.

35. POINT No.3: The appellants came up with the suit only to ward off the effect of the second respondent fostering the third respondent as their adopted son. This fact of adopting the third respondent was supported by her at the trial. She went to the extent of stating that she had bequeathed all these properties to him under the Wills dated 19.09.1977 and 15.07.1987. It was known to the appellants when Ex.A1 legal notice was issued to her on their behalf and when she filed caveat petitions in the Courts at Tirupathi. That appears to be triggering instance to formant this litigation on a false pretext, without any cause, and which they miserably failed to make out.

36. In view of findings on points 1 and 2, the appellants could not have had any relief from the trial Court and rightly learned trial Judge rejected their version dismissing the suit. There are no reasons to interfere with the judgment and decree under appeal. They have to be confirmed.

37. Thus, this point is answered.

38. POINT No.4: In the result, this appeal is dismissed confirming the judgment and decree of the trial Court. Having regard to close relationship among these parties, there shall be no order as to costs. All pending petitions, stand closed. Interim orders, if any, stand vacated.

_____ M. VENKATA RAMANA, J Dt:29.02.2020 Rns HON'BLE SRI
JUSTICE M. VENKATA RAMANA Date:29.02.2020 Rns